

MUTUAL NON-DISCLOSURE AGREEMENT

Effective Date: 12 February 2024

This Mutual Non-Disclosure Agreement (“**Agreement**”) is entered into as of the Effective Date by and between:

Aurelios Systems Inc., a corporation organized under the laws of Delaware with its principal office at **427 Whitlock Plaza, Wilmington, DE 19803** (“**Party A**”),
and

Maridian Analytics LLP, a limited liability partnership organized under the laws of New York with its principal office at **55 Harborview Circle, Brooklyn, NY 11231** (“**Party B**”).

Each of Party A and Party B may be referred to individually as a “**Party**” and collectively as the “**Parties**.”

1. Purpose

The Parties intend to engage in discussions and exchange information relating to potential commercial cooperation, technology integration, market evaluation, or other mutually beneficial initiatives (the “**Purpose**”).

The exchange of confidential information is necessary for the Parties to evaluate or further the Purpose.

2. Mutual Confidentiality Obligations

This Agreement imposes **mutual** confidentiality obligations. Each Party may disclose Confidential Information to the other, and each Party agrees to protect such information in accordance with this Agreement.

3. Definition of Confidential Information

“Confidential Information” means any non-public, proprietary, technical, business, financial, operational, strategic, legal, or commercial information disclosed by a Party (**“Disclosing Party”**) to the other Party (**“Receiving Party”**), whether orally, visually, in writing, or in electronic form, that:

- a. is marked or identified as confidential; or
- b. should reasonably be understood to be confidential based on the nature of the information or the circumstances of disclosure.

Confidential Information includes, without limitation:

- product roadmaps, source code, APIs, system designs
- customer lists, pricing, business plans
- research data, algorithms, workflows
- contracts, financial statements, and projections
- third-party confidential information in the Disclosing Party’s possession

4. Exclusions

Confidential Information does **not** include information that the Receiving Party can demonstrate:

- a. is or becomes publicly available through no breach of this Agreement;
- b. was lawfully known to the Receiving Party prior to receipt from the Disclosing Party;
- c. is independently developed without use of, or reference to, the Confidential Information; or
- d. is obtained lawfully from a third party without breach of any confidentiality obligation.

5. Obligations of the Receiving Party

The Receiving Party shall:

- a. use Confidential Information solely to evaluate or further the Purpose;
- b. protect the Confidential Information using at least the same degree of care it uses for its own confidential information (and no less than reasonable care);
- c. restrict disclosure solely to those employees, contractors, and professional advisers who have a strict need to know for the Purpose;
- d. ensure such recipients are bound by confidentiality obligations no less protective than those in this Agreement; and
- e. not copy, reverse engineer, disassemble, or create derivative works from Confidential Information except as permitted by the Purpose.

6. Permitted Disclosures

The Receiving Party may disclose Confidential Information:

- a. to its employees, directors, contractors, accountants, auditors, financial advisors, or legal counsel, provided they are bound by obligations of confidentiality at least as stringent as this Agreement;
- b. when required by law, regulation, or court order, provided that the Receiving Party gives prompt notice to the Disclosing Party (to the extent legally permitted) to allow it to seek protective measures;
- c. to its potential investors, financing partners, or acquirers under confidentiality obligations at least as protective as this Agreement.

7. Confidentiality Period

Confidentiality obligations survive for **five (5) years** from the date of each disclosure.

8. Information Disclosed Before and After the Effective Date

This Agreement applies to Confidential Information disclosed **before, on, or after** the Effective Date.

9. Third-Party Information

Confidential or proprietary information of third parties disclosed by the Disclosing Party shall be treated as Confidential Information under this Agreement.

10. Return or Deletion

Upon the Disclosing Party's written request or termination of this Agreement, the Receiving Party shall, within a reasonable time:

- a. return or destroy all Confidential Information;
- b. delete all electronic records containing Confidential Information; and
- c. certify such destruction in writing upon request.

Receiving Party may retain archival copies solely for regulatory compliance or dispute-resolution purposes.

11. No Licenses or Intellectual Property Rights

Nothing in this Agreement grants the Receiving Party any rights or licenses in or to the Disclosing Party's intellectual property, except for the limited right to use the Confidential Information strictly for the Purpose.

12. No Warranty

All Confidential Information is provided “**as is**”, without any warranties, express or implied, including warranties of accuracy, completeness, fitness for a particular purpose, or non-infringement.

13. Remedies

The Parties acknowledge that unauthorized disclosure or misuse of Confidential Information may cause irreparable harm for which monetary damages may be inadequate. The Disclosing Party may seek **injunctive relief**, specific performance, or other equitable remedies in addition to any legal remedies available.

14. No Partnership or Agency

Nothing in this Agreement creates any joint venture, partnership, employment, fiduciary, or agency relationship between the Parties.

15. Term and Termination

This Agreement commences on the Effective Date and continues until terminated by either Party upon **thirty (30) days'** written notice.

Termination does not relieve either Party of obligations regarding Confidential Information disclosed prior to termination.

16. No Abnormal Restrictions

This Agreement does **not** impose non-competition, exclusivity, or non-solicitation obligations unless expressly agreed in a separate written contract.

17. Assignment

Neither Party may assign or transfer this Agreement without the prior written consent of the other Party, except to an affiliate or to a successor entity in connection with a merger, acquisition, or sale of substantially all assets.

18. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the **State of Delaware**, without regard to its conflicts-of-laws principles.

19. Amendments

Any amendment or modification of this Agreement must be in writing and signed by both Parties.

20. Entire Agreement

This Agreement constitutes the entire agreement between the Parties regarding treatment of Confidential Information and supersedes all prior oral or written agreements concerning confidentiality.

SIGNATURES

Aurelios Systems Inc.

By: _____

Name: _____

Title: _____

Date: _____

Maridian Analytics LLP

By: _____

Name: _____

Title: _____

Date: _____